

Mahavir Singh v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 22 April 2015 · WRIT - C No. - 22677 of 2015 · **Writ dismissed on laches; bill dispute relegated to clause 6.5.**

HEADNOTE

A belated writ against U.P. Power Corporation Ltd. was dismissed on laches. Any dispute relating to the bill may be raised by an application under paragraph 6.5 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Mahavir Singh and twenty others filed a writ petition in the Allahabad High Court against U.P. Power Corporation Ltd., through its Chairman and two other officers. The petition came up before a Division Bench in 2015. After hearing counsel for the petitioners, the Court treated the challenge as belated. It declined to entertain the writ and left any bill-related grievance to the statutory mechanism under the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A writ petition filed at a belated stage is liable to be dismissed on laches; any dispute relating to the bill may be raised by an application under paragraph 6.5 of the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF ANY BILLING DISPUTE

The Court did not examine the bill; it dismissed the writ on laches and pointed to paragraph 6.5. ¶ 1